



CHAPTER xii.

An Act for enlarging the powers of investment of the Life Association of Scotland and for other purposes. A.D. 1903.

[30th June 1903.]

WHEREAS the Life Association of Scotland is a corporation (hereinafter referred to as “the Association”) transacting a large business in life and other branches of assurance in the United Kingdom of Great Britain and Ireland and abroad :

And whereas the Association is constituted and governed by a contract of copartnery dated the twenty-third day of March one thousand eight hundred and thirty-nine and various subsequent dates and registered in the books of council and session at Edinburgh the first day of March one thousand eight hundred and forty-one under which the persons therein named and designed and thereto subscribing formed themselves into a company as from the eighteenth day of December one thousand eight hundred and thirty-eight under the name of the Edinburgh and Glasgow Assurance Reversion and Trust Company in order to carry on the business of effecting assurances on lives and survivorships the purchasing and granting of annuities and endowments and reversions and such other business as is transacted by similar assurance companies and by charter under the Seal appointed by the Treaty of Union to be kept and used in Scotland in place of the Great Seal formerly used there bearing date the twenty-sixth day of April and written to the seal and registered and sealed the seventh day of June both in the year one thousand eight hundred and forty-one whereby the said Company was incorporated by the name of the Life Association of Scotland and by the following Acts namely the Life Association of Scotland Act 1853 (hereinafter called “the Act of 1853”) and the Life Association of Scotland Act 1888 (hereinafter called “the Act of 1888”):

[*Price 3d.*]

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And whereas having regard to the large and important business of the Association and to enable the same to be more effectually carried on and in view of the general fall in the rate of interest obtainable on money it is expedient that further provision should be made for the investment of the paid-up capital and other funds and property of the Association :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Life Association of Scotland Act 1903 and the Act of 1853 the Act of 1888 and this Act may be cited together as the Life Association of Scotland Acts 1853 to 1903.

Interpretation.

2. In this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction :—

The expression “the Association ” means the Life Association of Scotland as incorporated by the Act of 1853 ;

The expression “the directors ” means the directors of the Association for the time being ;

The expression “the recited Acts ” means the Act of 1853 and the Act of 1888.

Recited Acts contract of copartnery and charter to remain in force except as amended by this Act.

3. Nothing in this Act contained shall affect the provisions of the recited Acts or of the said contract of copartnery or Royal charter except in so far as necessary to give effect to the express provisions of this Act.

Investment of funds.

4. Without prejudice and in addition to the powers of investment contained in the recited Acts and in the said contract of copartnery and Royal charter the paid-up capital and other funds and property of the Association (so far as the same shall not be required to satisfy the immediate claims upon and expenses of the Association) may from time to time be lent laid out and invested by the directors in the name or on behalf of the Association in or upon any such obligations investments or securities whatsoever as the Association may by special resolution from time to time determine and any such special resolution may either specify the particular obligations investments or securities or classes or descriptions of

obligations investments or securities in or upon which the directors are thereby authorised to lend lay out and invest the paid-up capital and other funds and property of the Association or may authorise the directors subject to such conditions (if any) as may be imposed by such resolution to lend lay out and invest the same in or upon any obligations investments or securities which the directors shall in their discretion think fit and it shall be in the power of the directors at pleasure to alter change sell or dispose of any obligations investments or securities which may be made acquired or taken by or on behalf of the Association in virtue of the power conferred by this Act and again to lend lay out or invest the proceeds thereof from time to time in any obligations investments or securities authorised by any such special resolution as aforesaid or otherwise Provided that nothing in this Act shall abridge or diminish the existing powers of the directors to lend lay out or invest the paid-up capital and other funds and property of the Association at their discretion in or upon any of the obligations investments or securities authorised by the recited Acts or the said contract of copartnery and Royal charter or any of them or to alter change sell or dispose of any of the said obligations investments or securities.

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5. For the purposes of this Act a special resolution of the Association shall mean a resolution passed at a special meeting of the Association called by order of the directors either at their own instance or upon requisition under section 26 of the Act of 1853 and held in manner prescribed by the Act of 1853 for the calling and holding of special meetings of the Association by a majority of not less than three-fourths of the votes of the shareholders of the Association voting at such meeting in person or by proxy according to the scale and subject to the regulations prescribed by the Act of 1853 and confirmed at a second special meeting of the Association to be called and held in manner aforesaid not less than fourteen nor more than thirty days after the former special meeting by a majority of the votes of the shareholders of the Association voting thereat in person or by proxy in accordance with the said scale and subject to the said regulations.

Special resolution.

6. Nothing in this Act contained shall exempt the Association from the provisions of the Life Assurance Companies Acts 1870 to 1872 or of any general Act passed during the present or any future session of Parliament and affecting assurance companies formed previously to the passing thereof.

Association not exempt from provisions of general Acts.

A.D. 1903. 7. All costs charges and expenses of and incidental to the
Costs of Act. preparing obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Association.

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